

Form 60A.10A

20

No.

Supreme Court of Nova Scotia
(Family Division)

Between: [copy standard heading]

[name]

Applicant

and

[name]

Respondent

Notice to Mother, Father or Parent

TAKE NOTICE: Sharing identifying information, including copies of documents, from this proceeding verbally, in writing or through the internet, including Facebook, Snapchat, Instagram or any other social media, is an offence pursuant to section 94(1) of the *Children and Family Services Act*, punishable by a fine of up to \$10,000 and imprisonment for 2 years.

To: [name of mother, father, or parent]

The applicant requests an order that a child is in need of protective services

The applicant is applying to the Supreme Court (Family Division) for an order determining that the child [name, birth date and sex] is in need of protective services under the *Children and Family Services Act*.

The applicant started this application by filing this notice on the date certified by the prothonotary.

Grounds for the order

The applicant is applying for the order on the following grounds:

1 [refer to section(s) in subsection 22(2) of the *Act*] ;

2 ;

3 .

Notice of [interim] hearing

At [a.m./p.m.] on [date] , 20 , an interim hearing will take place before a judge in Chambers at the Courthouse, [insert address] , Nova Scotia to hear a motion for an order [custodial term of interim order requested only] . The judge may grant the [interim] order in your absence if you or your counsel do not attend.

Reason for notice

You have been identified as the [mother of/father of/possible father of/parent of] the child, [name] , and, pursuant to section 36A(1) of the *Children and Family Services Act*, you are being provided with notice. Section 36A(1) of the *Children and Family Services Act* provides:

36A(1) Where the child who is the subject of the proceeding is under one year of age when the proceeding is commenced, and the mother or father of the child is not the child's parent or guardian, notice of the proceeding shall be served upon the mother or father, as the case may be, not later than forty-five days after the proceeding is commenced.

Possible interim or final order against you

The judge may grant an interim or final order without further notice to you if you or your counsel do not appear at the time, date, and place for any hearing.

Counsel

You may retain and instruct counsel to represent you at the hearing. If you are unable to afford a lawyer, a lawyer may be available through the local Legal Aid office. If you wish to be represented by a lawyer, you should contact a lawyer as soon as possible.

Filing and delivering documents

Any documents you file with the court must be filed at the office of the Supreme Court of Nova Scotia (Family Division), [insert address] , Nova Scotia [telephone number(s)] .

The *Nova Scotia Civil Procedure Rules* require that whenever you file a document you must immediately deliver a copy of it to the applicant and each other party entitled to notice, unless the document is part of an *ex parte* motion, the parties agree delivery is not required, or a judge orders it is not required.

Documents you deliver to the applicant may be delivered to the applicant's designated address shown in the contact information for applicant on this notice, and documents delivered there are considered received by the applicant on delivery.

Contact information

The applicant designates the following address:

Further contact information is available from the prothonotary.

Signature

Signed [date] , 20

Signature of applicant

Print name:

[or]

Signature of counsel

[name] as counsel for [name]